
CITY COUNCIL REGULAR MEETING

DATE: August 18, 2026

SUBJECT: Public Hearing: Consideration of Ordinance No. 869-26 -
Accepting Public Road Right-of-Way (MCC - First Replat) - 1st
Reading

PRESENTED BY: Michael Hall, City Planner

ITEM DESCRIPTION

Evans Community Development is processing the Mountain Cement Company Minor Subdivision - First Replat application, which seeks to consolidate Lot A of RE-3237 and Lot 1 of the MCC Minor Subdivision, into a single lot. Both lots are annexed into the City of Evans and are owned by Mountain Cement Company, LLC. The proposed resultant lot will contain the pending MCC transloading terminal, which is under construction, permitted by separate Site Plan. This replat and the subject dedication of additional right-of-way is related to but is distinct and procedurally separate from the MCC facility.

The Replat application has been administratively approved and included a condition of approval for City Council to accept the additional road right-of-way, prior to recording the plat, in addition to other conditions. Per Section 18.03.100

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of the Evans Municipal Code, City Council is responsible for accepting rights-of-way, being the subject and extent of this Ordinance.

The acceptance by City Council establishes that the right-of-way will serve a public purpose, being the expansion of the City transportation network, which benefits the future users of the roadway and the greater public. Additionally, the roads will be officially incorporated into the City street system.

The right-of-way to be accepted is detailed in the surveyed Exhibits A and B attached to the Ordinance and as shown and labeled on the draft Replat. In brief, the property owner requests to dedicate an additional strip of right-of-way, being ten (10) feet in width, along the full length of frontage of the subject project, lying west of and adjacent to the existing sixty (60) foot wide right-of-way for 47th Avenue. The area to be dedicated is approximately 0.32 acres. This area had been previously identified as future right-of-way, to be dedicated to the City of Evans, per the Weld County Recorded Exemption RECX15-0163 plat.

Should City Council approve this Ordinance, it will be recorded with the County Clerk and the Ordinance recordation information will be shown and labeled on the Replat as detailed in the Ordinance Section 2. Following approval of this Ordinance, the Replat may proceed to signing and recording.

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FINANCIAL SUMMARY

There are no direct financial impacts to the City as a result of this right-of-way acceptance and dedication. Any future public roadway improvements within the 47th Avenue right-of-way will be addressed under the terms of a separately approved Development Agreement.

RECOMMENDATION

Staff has reviewed applicable Evans Municipal Code sections, and found the applicant's request meets the requirements, procedures, and criteria for approval. Staff recommends City Council approve Ordinance Number 869-26.

SUGGESTED MOTIONS

"I move to approve Ordinance Number 869-26, as proposed."

ATTACHMENTS

- Ordinance Number 869-26 w/ Exhibits
- Dedication Request Letter
- Draft MCC First Replat
- RECX15-0163 Plat